

Court No. - 40

Case :- WRIT - C No. - 22278 of 2023

Petitioner :- Vishal Chawla

Respondent :- Consumer Grievance Redressal Forum Purvanchal Vidhut
Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

The respondents are accorded two weeks time to file counter affidavit. Three days, thereafter, is accorded to file rejoinder affidavit. Put up this matter as fresh on 16.8.2023.

Order Date :- 13.7.2023

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Court No. - 40

Case :- WRIT - C No. - 22278 of 2023

Petitioner :- Vishal Chawla

Respondent :- Consumer Grievance Redressal Forum Purvanchal
Vidhut Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

On the request being made on behalf of learned counsel for the respondent, the matter is passed over.

Put up as fresh on 11.09.2023.

Order Date :- 16.8.2023

A. Pandey

Court No. - 40

Case :- WRIT - C No. - 22278 of 2023

Petitioner :- Vishal Chawla

Respondent :- Consumer Grievance Redressal Forum Purvanchal
Vidhut Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

On the request of learned counsel for the petitioner for enabling him to file supplementary affidavit, the case is passed over.

Put up as fresh on 26..09.2023.

Order Date :- 18.9.2023

A. Pandey

Court No. - 40

Case :- WRIT - C No. - 22278 of 2023

Petitioner :- Vishal Chawla

Respondent :- Consumer Grievance Redressal Forum Purvanchal
Vidhut Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Supplementary affidavit filed today is taken on record.
2. The case is passed over on the request of learned counsel for the contesting-respondent.
3. Put up this matter on 10.10.2023 as fresh.

Order Date :- 6.10.2023

A.K.Srivastava

Court No. - 40

Case :- WRIT - C No. - 22278 of 2023

Petitioner :- Vishal Chawla

Respondent :- Consumer Grievance Redressal Forum Purvanchal
Vidhut Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. As it is pressed that the petitioner in terms of the compounding has already deposited the requisite amount and as such, the permanent disconnection application is to be processed forthwith. As the parties have not brought on record the compounding order, let Sri N.K.Tiwari, learned counsel for the respondent place the said order on record on or before next date of listing.
2. Put up this matter on 16.10.2023 as fresh.

Order Date :- 10.10.2023

A.K.Srivastava

Court No. - 40

Case :- WRIT - C No. - 22278 of 2023

Petitioner :- Vishal Chawla

Respondent :- Consumer Grievance Redressal Forum Purvanchal
Vidhut Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Ms. Nand Prabha Shukla,J.

1. Heard Sri Arun Mishra, learned counsel for the petitioner and Sri N.K.Tiwari, learned counsel for the respondent.
2. The present writ petition has been preferred for a mandamus commanding the second respondent to permanently disconnect the electricity connection of the petitioner since 1.12.2020 as he has already deposited compounding as contemplated in Section 152 of Electricity Act, 2003.
3. At the very outset, Sri N.K.Tiwari, learned counsel for the respondent raised an objection regarding maintainability of the writ petition and placed reliance upon the order dated 22.8.2019 passed by Division Bench of this Court in *Bhupendra Singh @ Bhupendra Singh Chauhan v/s. State Of U P And 2 Others*, wherein, on the basis of the checking report, the petitioner was found using electricity unauthorizedly. In the said case, the petitioner agreed for payment of Rs.20,000/- as compounding fee to avoid criminal prosecution under Section 135 of Electricity Act, 2003. Simultaneously, the petitioner's premises was provisionally assessed for unauthorized use of electricity for a sum of Rs.1,27,295/-. Meanwhile, the petitioner in response to the above, deposited a sum of Rs.8000/- towards compounding fee and the balance Rs.12000/- remained to be paid. As against the provisional assessment, the petitioner raised no objection and deposited a sum of Rs.8000/-. Thus, towards assessment, a sum of Rs.1,19,295/- remained to be paid. Thereafter, the Department had issued a notice of demand dated 23.05.2019 requiring the petitioner to pay a sum of Rs.1,27,295/- towards assessment and Rs.20,000/- towards compounding fee. In such situation, the demand notice was under challenge before this Court in the aforementioned writ petition on the plea that the petitioner had already paid sufficient amount and since the matter had

been compounded he was not liable for payment of any further amount. The said argument has been negated by the Division Bench with an observation "*The argument is completely misconceived inasmuch as payment of compounding fee is in respect of offence of theft is altogether distinct from unauthorized use of electricity for which the petitioner is liable to pay as per assessment.*". The similar view has been taken by another Division Bench of this Court in *Sharvan Kumar Jain v/s. State of U.P. & 2 Others* (Writ C No. 25372 of 2015, dt. 4.5.2015). Lastly, he has placed reliance upon the order dated 11.2.2014 in *Sandeep Kesarwani v/s. State of U.P. & 3 Others* (Writ C No. 69101 of 2013).

4. On the other hand, learned counsel for the petitioner has placed the judgment passed by Hon'ble Apex Court in ***The Executive Engineer vs. M/s Sri Seetaram Ricemill*** and relied upon paragraph nos. 15, 16, 17 and 22 of the said judgment. He submits that there is distinction between Sections 126 and 135 of the Electricity Act 2003. The petitioner's case is of theft, therefore, the judgments cited by learned counsel for the respondent would not be attracted in the present matter in the light of aforesaid dictum. In support of his submissions, he has placed reliance upon Clause 8.2(vii) of Electricity Supply Code 2005, which provides if the compounding charges are accepted from the consumer as per the sum prescribed in the Act, any further charges for assessment of units by the licensee shall be at 1.0 times of existing tariff only. He submits that in terms of the aforesaid provision the amount comes around Rs. 6.5 lacs and the petitioner is ready to deposit the same.
5. The matter requires consideration.
6. All the respondent are accorded three weeks' time to file response. One week, thereafter, for rejoinder.
7. Put up this matter on 28.11.2023 as fresh.
8. Till the next date of listing, no coercive action shall be taken against the petitioner in case he deposits Rs. 6.5 lacs within a week's time from today, which would be subject to outcome of the writ petition.

Order Date :- 27.10.2023

A.K.Srivastava

Court No. - 32

Case :- WRIT - C No. - 22278 of 2023

Petitioner :- Vishal Chawla

Respondent :- Consumer Grievance Redressal Forum Purvanchal
Vidhut Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Salil Kumar Rai,J.

Hon'ble Mohd. Azhar Husain Idrisi,J.

1. Heard learned counsel for the petitioner and Sri Rakesh Kumar Mishra, Advocate, holding brief of Sri Narendra Kumar Tiwari, learned counsel for the respondents.
2. It is stated by learned counsel for the petitioner that the department has introduced a one time scheme for settlement of dues of the consumers and the petitioner in order to avail the benefits of the said scheme wishes to withdraw the petition. It may be dismissed as withdrawn.
3. On the prayer of learned counsel for the petitioner, the petition is dismissed as withdrawn.

Order Date :- 4.12.2023

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